AREA Alberta Real Estate Association

_____
Agreement Number

SELLER CUSTOMER ACKNOWLEDGMENT AND FEE AGREEMENT

(For Use in Common Law and Designated Agency Brokerages)

Between

THE BUYER'S BROKERAGE (WE) and **THE SELLER (YOU)**

Name _____ Name _____

Name _____ Name _____

1. THE PROPERTY

1.1 The land and buildings at (municipal address): _____

_____

Legal Description:

Non-Condominium:

Plan:	Block:	Lot:

OR

Condominium:

Plan:	Unit Number:

OR

Alberta Township Survey(ATS)

W. of _____ Meridian	Range:	Township:	Section:

2. OUR ROLE

2.1 You agree that we will not act as your agent.

You have read and understood this agreement and the Real Estate Council of Alberta's *Consumer Relationships Guide* (Guide). You have decided not to have an agent represent you. This means you will not have the advantages, protection, and services that go with agency. You understand that:

(a) we have no agency obligations to you, especially fiduciary ones. In a fiduciary relationship, you rely on someone to act in your best interests.

(b) we cannot, except as hereinafter agreed, use our judgment on your behalf, give you advice, or act in your best interests.

2.2 We are the agent of the buyer interested in your property. As such, we must:

(a) be loyal to the buyer.

(b) act in the buyer's best interests.

(c) give the buyer all information you give to us, even if it is confidential, unless we got the confidential information from you while we were your agent.

(d) not give you information or advice that is not in the buyer's interests.

3. OUR RESPONSIBILITIES

3.1 We must:

(a) act honestly.

(b) exercise reasonable care when we provide our services to you under this agreement.

(c) hold money we receive in trust, as the *Real Estate Act* requires.

(d) comply with the *Real Estate Act* and its regulations and the rules and bylaws of the Real Estate Council of Alberta.

(e) immediately identify the buyer after entering into this fee agreement with you.

(f) give you a copy of this agreement as soon as possible after signing.

4. OUR SERVICES

4.1 We may, if we choose to:

(a) give you statistics and information on property, including comparable property information from listing services or other local databases.

(b) provide agreements of purchase and sale and other relevant forms, and help you complete them.

(c) give you the names of real estate service providers. We will not recommend any specific service provider.

(d) present all offers and counteroffers to and from you, even when you have accepted another purchase contract.

(e) pass on information to the buyer that you want them to know.

(f) keep you informed of progress.

5. OUR FEE

5.1 Our fee is _____ (plus GST).

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5.2 You must pay our fee within _____ days of completion of the sale if the buyer completes a legally binding contract with you to buy the property.

5.3 You must pay our fee within _____ days after the date of completion in the contract, even if you don't complete the sale, unless you have a legal reason for not completing it.

5.4 You do not pay our fee if the buyer does not complete the sale for any reason.

5.5 You authorize us to use the deposit, if any, towards our fee. You will instruct your lawyer to deduct any outstanding balance of our fee from the sale proceeds and pay it to us.

5.6 We and you agree that we are entitled to encumber the property under the Land Titles Act (Alberta) to secure payment of all money that you owe us under this agreement.

5.7 If we have to enforce any of our rights under this agreement and we are successful, you will pay us the costs of enforcement including our legal fees and disbursements on a solicitor/client full indemnity basis.

6. PERSONAL AND PROPERTY INFORMATION

6.1 You understand we can:

(a) get information about the property from any person, corporation, government body, or municipal agency.

(b) collect, maintain, use, and disclose personal and property information you give us for uses consistent with selling the property.

(c) maintain, use and disclose this information for statistical purposes.

7. AUDIO AND VIDEO RECORDINGS AND PHOTOGRAPHY

7.1 You consent to showing the property, including virtual showings using photography or videography, and acknowledge that your personal or confidential information may be seen by prospective buyers, their representatives, service providers, and others as may be required to attend the property by the prospective buyers.

7.2 You release and hold us and our brokerage representatives harmless from all legal liability due to any alleged breaches of privacy arising from showings of the property, including virtual showings using photography or videography.

7.3 You acknowledge it is unlawful to record conversations of any persons attending your property without their written consent and to have active cameras located in or on your property where privacy would be reasonably expected.

8. END OF THIS AGREEMENT

8.1 We or you may end this agreement in writing at any time. If the agreement ends, our rights and your rights under this agreement will not be affected.

9. DOWER CONSENT

9.1 The following questions must be answered if you are the only registered owner of the property:

(a) Are you legally married? (includes a separated couple not yet legally divorced but does not include a couple in a common law relationship) ❑ Yes ❑ No

(b) Have you or your spouse resided on the property at any time since your marriage? ❑ Yes ❑ No

If you answered yes to both questions, your spouse will have to complete the Dower Consent and Acknowledgment and sign this agreement in the non-owner spouse section. This information is requested to establish whether a dower interest in the property exists. By asking these questions, the brokerage is not providing advice on dower, nor creating an agency relationship.

10. OTHER DETAILS ABOUT THIS AGREEMENT

10.1 Any future changes to this agreement must be in writing and signed by both of us to be effective.

10.2 Words with a singular meaning may be read as plural when required by the context.

10.3 If any clauses added to this agreement conflict with standard clauses in this agreement, the added clauses apply.

10.4 This agreement is the entire agreement between us and you. Anything we discussed with you, or that you told us, is not part of this agreement unless it is in this agreement.

10.5 The laws of the Province of Alberta govern this agreement, and all disputes will be resolved in Alberta.

10.6 A sale is complete when all money has been paid to you or your lawyer and is releasable.

11. YOUR ACKNOWLEDGMENT

11.1 You acknowledge that:

(a) you have read this agreement.

(b) you have received and read the Guide.

(c) this agreement and the payment of our fee do not make us your agent.

(d) you had the opportunity to get independent advice from a lawyer, tax adviser, lender, appraiser, surveyor, structural engineer, property inspector or such other professional service provider as you require before signing this agreement.

(e) this agreement accurately sets out what we and you agree to.

12. CONTACT INFORMATION

12.1 The following contact information must be used for all written communications between us and you. If this contact information changes, we and you must tell each other in writing within two days of the change.

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SELLER:

Name_____

Address_____
(postal code)

Phone _____ Fax _____

Email _____

Name _____

Address_____
(postal code)

Phone _____ Fax _____

Email_____

BROKERAGE:

Name_____

Address_____
(postal code)

Phone _____ Fax _____

Email _____

BROKERAGE REPRESENTATIVE:

Name _____

Address: c/o the Brokerage

Phone _____ Fax _____

Email_____

12.2 We and you may communicate and deliver documents and information to each other in person, by mail, or electronically. We and you acknowledge there are risks with each of these methods and we have explained these risks to you.

12.3 We and you agree that for our communication an electronic signature will have the same function as an ink signature and that any documents or information exchanged between us will be considered delivered when they are sent.

SIGNATURES:

SIGNED AND DATED on _____ , 20_____.

Signature of Seller	Signature of Seller
Print Name of Seller	Print Name of Seller
Signature of Witness	Signature of Witness
Print Name of Witness	Print Name of Witness
Signature of Brokerage Representative	Print Name of Brokerage Representative

NON-OWNER SPOUSE SIGNATURE (when dower rights apply):

Signed and dated at _____, Alberta at _____. m. on _____, 20_____.

Non-Owner Spouse Signature	Non-Owner Spouse Name (print)
Witness Signature	Witness Name (print)

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